

After your protection order hearing

What if I disagree with the court's decision?

Within **10 DAYS** after the entry of the order you can ask for reconsideration or revision. If the 10th day falls on a weekend or judicial holiday, your deadline is the next judicial day.



Ask for **reconsideration** if the decision was legally incorrect or you have newly discovered evidence.

Ask for **revision** if your case was decided by a court commissioner (not a judge), and you want a judge to review the same evidence.

File your motion for **reconsideration** or **revision** with the court clerk. Check your county's **local court rules** for specific instructions.

Find forms at www.courts.wa.gov/forms/.

You can file an **appeal** within **30 DAYS** after entry of the order. You have the right to a transcript or recording of the hearing.

If new evidence would support issuing a protection order, you can refile a petition for a protection order **at any time**.

If the order was granted...

How is the order enforced?

The restrained person must follow the order or risk criminal or civil penalties.

The protected person can call 911 to report violations.



Can the order be changed or terminated?

Either party may file a motion to modify or terminate the order.

A Restrained Person may do this only once within every 12-month period.

Can the order be renewed?

The Protected Person may file a motion to renew within 90 days before the order expires.

Example: if an order expires Dec. 15, a motion to renew may be filed as early as Sept. 16.



If weapons are surrendered, will they be returned?

Weapons may be returned after the order expires. Contact the law enforcement agency listed on the *Order to Surrender Weapons*.

Protected Person: Ask them to alert you if weapons are returned.

Restrained Person: Ask for instructions to have weapons returned.

This information is a summary, not a complete list. For advice about your situation, talk to a lawyer.

These civil legal aid organizations may help:

Northwest Justice Project - nwjustice.org/get-legal-help

- Outside King County, call the CLEAR Hotline at 1-888-201-1014
- In King County, call 2-1-1

Sexual Violence Law Center - svlawcenter.org/ or call 844-991-7852 (SVLC)

Regional volunteer lawyer programs:

- Benton Franklin Legal Aid - bflegalaid.org/
- BMAC Pro Bono Lawyer Referral Program (Walla Walla and Columbia Counties) - bmacprobono.wordpress.com/
- Chelan-Douglas County Volunteer Attorney Services - cdcvas.org/
- Clallam-Jefferson County Pro Bono Lawyers - cjcpbl.org/
- Clark County Volunteer Lawyers Program - ccvlp.org/
- Eastside Legal Assistance Program (King County) - elap.org/
- Inland Empire Legal Aid (Spokane, Ferry, Lincoln, Pend Oreille, and Stevens Counties) - <https://www.inlandempirelegalaid.org/>
- King County Bar Association Pro Bono Services ([kcba.org/?pg=Free-Legal-Assistance](https://www.kcba.org/?pg=Free-Legal-Assistance)) and King County Bar Association's Domestic Violence Legal Advocacy Project (DV LEAD) (<https://www.kcba.org/?pg=Domestic-Violence-Legal-Advocacy-Project>)
- Kitsap Legal Services - kitsaplegalservices.org/
- LAW Advocates of Whatcom County - lawadvocates.org/
- Skagit Legal Aid - skagitlegalaid.org/
- Snohomish County Legal Services - snocollegal.org/
- Tacomaprobono Community Lawyers - tacomaprobono.org/
- Timberland Legal Aid (Pacific and Lewis Counties) - <https://timberlandlegalaid.org/>
- Sound Legal Aid (Thurston, Mason, Lewis, Pacific, and Grays Harbor Counties) - <https://soundlegalaid.org/>
- Central WA Legal Aid - <https://cwlegalaid.org/>

Qualified Legal Service Providers by county - wsba.org/connect-serve/pro-bono-public-service/qlsp-directory